8.100 MEDICAL ASSISTANCE ELIGIBILITY

8.100.1 Definitions

300% Institutionalized Special Income Group is a Medical Assistance category that provides Long-Term Care Services to aged or disabled individuals.

1619b is section 1619b of the Social Security Act which allows individuals who are eligible for Supplemental Security Income (SSI) to continue to be eligible for Medical Assistance coverage after they return to work.

AB - Aid to the Blind is a program which provides financial assistance to low-income blind persons.

ABD - Aged, Blind and Disabled Medical Assistance is a group of Medical Assistance categories for individuals that have been deemed to be aged, blind, or disabled by the Social Security Administration or the Department.

Achieving a Better Life Experience (ABLE) accounts – Special savings accounts that are set up by (or for) certain individuals with disabilities in a qualified ABLE program that are exempt for eligibility. They can be established by any state's qualified ABLE Program. Colorado's ABLE program is administered by the Department of Higher Education.

Adjusted Gross Income (AGI)-means "gross income", as defined in federal tax rules, minus certain adjustments prescribed in the federal tax rules to derive the "Adjusted Gross Income" line on the tax return. These adjustments from gross income are taken before the taxpayer takes his or her Schedule A deductions or Standard Deduction.

Adult MAGI Medical Assistance Group provides Medical Assistance to eligible adults from the age of 19 through the end of the month that the individual turns 65, who do not receive or who are ineligible for Medicare.

AND - Aid to Needy Disabled is a program which provides financial assistance to low-income persons over age 18 who have a total disability which is expected to last six months or longer and prevents them from working.

AFDC - Aid to Families with Dependent Children is the Title IV federal assistance program in effect from 1935 to 1997 which was administered by the United States Department of Health and Human Services. This program provided financial assistance to children whose families had low or no income.

AP-5615 is the form used to determine the patient payment for clients in nursing facilities receiving Long Term Care.

Alien is a person who was not born in the United States and who is not a naturalized citizen.

Ambulatory Services is any medical care delivered on an outpatient basis.

Annuity is an investment vehicle whereby an individual establishes a right to receive fixed periodic payments, either for life or a term of years.

Applicant is an individual who is seeking an eligibility determination for Medical Assistance through the submission of an application.

DRAFT

Application Date is the date the application is received and date-stamped by the eligibility site or the date the application was received and date-stamped by an Application Assistance site or Presumptive Eligibility site. In the absence of a date-stamp, the application date is the date that the application was signed by the client.

Application for Public Assistance is the designated application used to determine eligibility for financial assistance. It can also be used to determine eligibility for Medical Assistance.

Blindness is defined in this volume as the total lack of vision or vision in the better eye of 20/200 or less with the use of a correcting lens and/or tunnel vision to the extent that the field of vision is no greater than 20 degrees.

Burial Spaces are burial plots, gravesites, crypts, mausoleums, urns, niches and other customary and traditional repositories for the deceased's bodily remains provided such spaces are owned by the individual or are held for his or her use, including necessary and reasonable improvements or additions to or upon such burial spaces such as: vaults, headstones, markers, plaques, or burial containers and arrangements for opening and closing the gravesite for burial of the deceased.

Burial Trusts are irrevocable pre-need funeral agreements with a funeral director or other entity to meet the expenses associated with burial for Medical Assistance applicants/recipients. The agreement can include burial spaces as well as the services of the funeral director.

Caretaker Relative is a person who is related to the dependent child or any adult with whom the dependent child is living and who assumes responsibility for the dependent child's care.

Case Management Services are services provided by community mental health centers, clinics, community centered boards, and EPSDT case managers to assist in providing services to Medical Assistance clients in gaining access to needed medical, social, educational and other services.

Cash Surrender Value is the amount the insurer will pay to the owner upon cancellation of the policy before the death of the insured or before maturity of the policy.

Categorically Eligible means persons who are eligible for Medical Assistance due to their eligibility for one or more Federal categories of public assistance.

Categorically Needy eligibility groups are specific populations which include but not limited to families with children, pregnant women, and aged, blind, or disabled individuals as defined in federal regulations 42 CFR § 435.4.

CBMS - Colorado Benefits Management System is the computer system that determines an applicant's eligibility for public assistance in the state of Colorado.

CDHS -Colorado Department of Human Services is the state department responsible for administering the social service and financial assistance programs for Colorado.

Children MAGI Medical Assistance group provides Medical Assistance coverage to tax dependents or otherwise eligible applicants through the end of the month that the individual turns 19 years old.

Child Support Services is a CDHS program that assures that all children receive financial and medical support from each parent. This is accomplished by locating each parent, establishing paternity and support obligations, and enforcing those obligations.

Citizen is a person who was born in the United States or who has been naturalized.

DRAFT

Client is a person who is eligible for the Medical Assistance Program. “Client” is used interchangeably with “recipient” when the person is eligible for the program.

CMS - Centers for Medicare and Medicaid Services is the Federal agency within the US Department of Health and Human Services that partners with the states to administer Medicaid and CHP+ via State Plans in effect for each State. Colorado is in Region VIII.

CHP+ - Child Health Plan Plus is low-cost health insurance for Colorado's uninsured children and pregnant women. CHP+ is public health insurance for children and pregnant women who earn too much to qualify for The Medical Assistance Program, but cannot afford private health insurance.

COLA - Cost of Living Adjustment is an annual increase in the dollar value of benefits made automatically by the United States Department of Health and Human Services or the state in OASDI, SSI and OAP cases to account for rises in the cost of living due to inflation.

Colorado State Plan is a written statement which describes the purpose, nature, and scope of the Colorado’s Medical Assistance Program. The Plan is submitted to the CMS and assures that the program is administered consistently within specific requirements set forth in both the Social Security Act and the Code of Federal Regulations (CFR) in order for a state to be eligible for Federal Financial Participation (FFP).

Common Law Marriage is legally recognized as a marriage in the State of Colorado under certain circumstances even though no legally recognized marriage ceremony is performed or civil marriage contract is executed. Individuals declaring or publicly holding themselves out as a married couple through verbal or written methods may be recognized as legally married under state law. C.R.S. § 14-2-104(3).

Community Centered Boards are private non-profit organizations designated in statute as the single entry point into the long-term service and support system for persons with developmental disabilities.

Community Spouse is the spouse of an institutionalized spouse.

Community Spouse Resource Allowance is the amount of resources that the Medical Assistance regulations permit the spouse staying at home to retain.

Complete Application means an application in which all questions have been answered, which is signed, and for which all required verifications have been submitted.

The Department is defined in this volume as the Colorado Department of Health Care Policy and Financing which is responsible for administering the Colorado Medical Assistance Program and Child Health Plan Plus programs as well as other State-funded health care programs.

Dependent Child is a child who lives with a parent, legal guardian, caretaker relative or foster parent and is under the age of 18, or, is age 18 and a full-time student, and expected to graduate by age 19.

Dependent Relative for purposes of this rule is defined as one who is claimed as a dependent by an applicant for federal income tax purposes.

Difficulty of Care Payments is a payment to an applicant or member as compensation for providing live-in home care to an individual who qualifies for foster care or Home and Community Based Services (HCBS) waiver program and lives in the home of the care recipient. This additional care must be required due to a physical, mental, or emotional handicap.

Disability as defined by Section 1614 of the Social Security Act (42 U.S.C 1382c), means the inability to engage in ~~to do~~ any substantial gainful activity (or, in the case of a child, having marked and severe

functional limitations) because ~~by reason~~ of a medically determinable physical or mental impairment~~(s)~~ that~~which~~ can be expected to result in death or that~~which~~ has lasted or can be expected to last for a continuous period of 1~~l~~2 months or more. For the purposes of the Family Caregiver Specified Excluded Individual, a care recipient's disability is defined by both the Americans with Disabilities Act (ADA) and Section 1614 of the Social Security Act (42 U.S.C 1382c). See definition for Family Caregiver.

Dual Eligible clients are Medicare beneficiaries who are also eligible for Medical Assistance.

Earned Income is defined for purposes of this volume as any compensation from participation in a business, including wages, salary, tips, commissions and bonuses.

Earned Income Disregards are the allowable deductions and exclusions subtracted from the gross earnings. Income disregards vary in amount and type, depending on the category of assistance.

Electronic Data Source is an interface established with a federal or state agency, commercial entity, or other data sources obtained through data sharing agreements to verify data used in determining eligibility. The active interfaces are identified in the Department's verification plan submitted to CMS.

Eligibility Site is defined in this volume as a location outside of the Department that has been deemed by the Department as eligible to accept applications and determine eligibility for applicants.

Employed means that an individual has earned income and is working part time, full time or is self-employed, and has proof of employment. Volunteer or in-kind work is not considered employment.

EPSDT- Early Periodic Screening, Diagnosis and Treatment is the child health component of the Medical Assistance Program. It is required in every state and is designed to improve the health of low-income children by financing appropriate, medically necessary services and providing outreach and case management services for all eligible individuals.

Equity Value is the fair market value of land or other asset less any encumbrances.

Ex Parte Review is an administrative process used to redetermine eligibility for a member without requesting verification by utilizing available information from the member's account, electronic sources, and other assistance programs. ~~review of eligibility during a redetermination period in lieu of performing a redetermination from the client. This administrative review is performed by verifying current information obtained from another current aid program.~~The Ex Parte Review starts 90 days before the members redetermination period ends.

Face Value of a Life Insurance Policy is the basic death benefit of the policy exclusive of dividend additions or additional amounts payable because of accidental death or other special provisions.
Fair Market Value is the average price a similar property will sell for on the open market to a private individual in the particular geographic area involved. Also, the price at which the property would change hands between a willing buyer and a willing seller, neither being under any pressure to buy or to sell and both having reasonable knowledge of relevant facts.

FBR - The Federal Benefit Rate is the monthly Supplemental Security Income payment amount for a single individual or a couple. The FBR is used by the Aged, Blind and Disabled Medical Assistance Programs as the eligibility income limits.

FFP - Federal Financial Participation as defined in this volume is the amount or percentage of funds provided by the Federal Government to administer the Colorado Medical Assistance Program.

DRAFT

FPL - Federal Poverty Level is a simplified version of the federal poverty thresholds used to determine financial eligibility for assistance programs. The thresholds are issued each year in the Federal Register by the Department of Health and Human Services (HHS).

Good Cause is the client's justification for needing additional time due to extenuating circumstances, usually used when extending deadlines for submittal of required documentation.

Good Cause for Child Support is the specific process and criteria that can be applied when a client is refusing to cooperate in the establishment of paternity or establishment and enforcement of a child support order due to extenuating circumstances.

HCBS are Home and Community Based Services are also referred to as "waiver programs". HCBS provides services beyond those covered by the Medical Assistance Program that enable individuals to remain in a community setting rather than being admitted to a Long-Term Care institution.

In-Kind Income is income a person receives in a form other than money. It may be received in exchange for work or service (earned income) or a non-cash gift or contribution (unearned income).

Inpatient is an individual who has been admitted to a medical institution on recommendation of a physician or dentist and who receives room, board and professional services for 24 hours or longer, or is expected to receive these services for 24 hours or longer.

Institution is an establishment that furnishes, in single or multiple facilities, food, shelter and some treatment or services to four or more persons unrelated to the proprietor.

Institutionalization is the commitment of a patient to a health care facility for treatment.

Institutionalized Individual is a person who is institutionalized in a medical facility, a Long-Term Care institution, or applying for or receiving Home and Community Based Services (HCBS) or the Program of All Inclusive Care for the Elderly (PACE).

Institutionalized Spouse is a Medicaid eligible client who begins a stay in a medical institution or nursing facility on or after September 30, 1989, or is first enrolled as a Medical Assistance client in the Program of All Inclusive Care for the Elderly (PACE) on or after October 10, 1997, or receives Home and Community Based Services (HCBS) on or after July 1, 1999; and is married to a spouse who is not in a medical institution or nursing facility. An institutionalized spouse does not include any such individual who is not likely to be in a medical institution or nursing facility or to receive HCBS or PACE for at least 30 consecutive days. Irrevocable means that the contract, trust, or other arrangement cannot be terminated, and that the funds cannot be used for any purpose other than outlined in the document.

Insurance Affordability Program (IAP) refers to Medicaid, Child Health Plan *Plus* (CHP+), and premium and cost-sharing assistance for purchasing private health insurance through state insurance marketplace.

Legal Immigrant is an individual who is not a citizen or national and has been permitted to remain in the United States by the United States Citizenship and Immigration Services (USCIS) either temporarily or as an actual or prospective permanent resident or whose extended physical presence in the United States is known to and allowed by USCIS.

Legal Immigrant Prenatal is a medical program that provides medical coverage for pregnant legal immigrants who have been legal immigrants for less than five years.

Limited Disability for the Medicaid Buy-In Program for Working Adults with Disabilities means that an individual has a disability that would meet the definition of disability under SSA without regard to Substantial Gainful Activity (SGA).

DRAFT

Long-Term Care is Medical Assistance services that provides nursing-home care, home-health care, personal or adult day care for individuals aged at least 65 years or with a chronic or disabling condition.

Long-Term Care Institution means class I nursing facilities, intermediate care facilities for intellectual and developmental disabilities (ICF/IDD) and swing bed facilities. Long-Term Care institutions can include hospitals.

Long-Term Services and Supports Level of Care Eligibility Determination is the determination using the state prescribed assessment instrument that an individual does or does not meet institutional level of care.

Long-Term Services and Supports Level of Care Eligibility Determination Screen is a comprehensive evaluation with an individual seeking services and appropriate collaterals (such as family members, friends, and/or caregivers) to determine the individual's eligibility for long-term services and supports based on their need for institutional level of care as determined using the state prescribed assessment instrument.

Managed care system is a system for providing health care services which integrates both the delivery and the financing of health care services in an attempt to provide access to medical services while containing the cost and use of medical care.

Medical Assistance is defined as all medical programs administered by the Department of Health Care Policy and Financing. Medical Assistance/Medicaid is the joint state/federal health benefits program for individuals and families with low income and resources. It is an entitlement program that is jointly funded by the states and federal government and administered by the state. This program provides for payment of all or part of the cost of care for medical services.
Medical Assistance Required Household is defined for purposes of this volume as all parents or caretaker relatives, spouses, and dependent children residing in the same home.

Minimal Verification is defined in this volume as the minimum amount of information needed to process an application for benefits. No other verification can be requested from clients unless the information provided is questionable or inconsistent.

Minimum Essential Coverage is the type of coverage one must maintain to be in compliance with the Affordable Care Act in order to avoid paying a penalty for being uninsured. Minimum essential coverage may include but not limited to: Medicaid; CHP+; private health plans through Connect for Health Colorado; Medicare; job-based insurance, and certain other coverage.

MMMNA - Minimum Monthly Maintenance Needs Allowance is the calculation used to determine the amount of institutionalized spouse's income that the community spouse is allowed to retain to meet their monthly living needs.

MAGI - Modified Adjusted Gross Income refers to the methodology by which income and household composition are determined for the MAGI Medical Assistance groups under the Affordable Care Act. These MAGI groups include Parents and Caretaker Relatives, Pregnant Women, Children, and Adults. For a more complete description of the MAGI categories and pursuant rules, please refer to section 8.100.4.

MAGI Expansion Group refers to low-income adults ages 19–64 who are eligible for Medicaid under the Affordable Care Act (ACA). This category includes adults who are parents or caretaker relatives of dependent children whose income exceeds the income threshold to qualify for the Parents and Caretaker Relatives MAGI category and who meet all other eligibility criteria, please refer to section 8.100.4.G.4.

DRAFT

MIA - Monthly Income Allowance is the amount of institutionalized spouse's income that the community spouse is allowed to retain to meet their monthly living needs.

MSP - Medicare Savings Program is a Medical Assistance Progrvam to assist in the payment of Medicare premium, coinsurance and deductible amounts. There are four groups that are eligible for payment or part-payment of Medicare premiums, coinsurance and deductibles: Qualified Medicare Beneficiaries (QMBs), Specified Low-Income Medicare Beneficiaries (SLIMBs), Qualified Disabled and Working Individuals (QDWIs), and Qualifying Individuals – 1 (QI-1s).

Non-Filer is an individual who neither files a tax return nor is claimed as a tax dependent. For a more complete description of how household composition is determined for the MAGI Medical Assistance groups, please refer to the MAGI household composition section at 8.100.4.E.

Nursing Facility is a facility or distinct part of a facility which is maintained primarily for the care and treatment of inpatients under the direction of a physician. The patients in such a facility require supportive, therapeutic, or compensating services and the availability of a licensed nurse for observation or treatment on a twenty-four-hour basis.

OAP - Old Age Pension is a financial assistance program for low income adults age 60 or older.

OASDI - Old Age, Survivors and Disability Insurance is the official term Social Security uses for Social Security Act Title II benefits including retirement, survivors, and disability. This does not include SSI payments.

Outpatient is a patient who is not hospitalized overnight but who visits a hospital, clinic, or associated facility for diagnosis or treatment. Is a patient who does not require admittance to a facility to receive medical services.

PACE - Program of All-inclusive Care for the Elderly is a unique, capitated managed care benefit for the frail elderly provided by a not-for-profit or public entity. The PACE program features a comprehensive medical and social service delivery system using an interdisciplinary team approach in an adult day health center that is supplemented by in-home and referral services in accordance with participants' needs.

Parent and Caretaker Relative is a MAGI Medical Assistance group that provides Medical Assistance to adults who are parents or Caretaker Relatives of dependent children.

Patient is an individual who is receiving needed professional services that are directed by a licensed practitioner of the healing arts toward maintenance, improvement, or protection of health, or lessening of illness, disability, or pain.

PEAK – the Colorado Program Eligibility and Application Kit is a web-based portal used to apply for public assistance benefits in the State of Colorado, including Medical Assistance.

PNA - Personal Needs Allowance means moneys received by any person admitted to a nursing care facility or Long-Term Care Institution which are received by said person to purchase necessary clothing, incidentals, or other personal needs items which are not reimbursed by a Federal or state program.

Pregnant Women is a MAGI Medical Assistance group that provides Medical Assistance coverage to pregnant women whose MAGI-based income calculation is less than 195% FPL, including women who are in their 12 months post-partum.

Premium means the monthly amount an individual pays to participate in a Medicaid Buy-In Program.

DRAFT

Provider is any person, public or private institution, agency, or business concern enrolled under the state Medical Assistance program to provide medical care, services, or goods and holding a current valid license or certificate to provide such services or to dispense such goods.

Psychiatric Facility is a facility that is licensed as a residential care facility or hospital and that provides inpatient psychiatric services for individuals under the direction of a licensed physician.
Public Institution means an institution that is the responsibility of a governmental unit or over which a governmental unit exercises administrative control.

Qualified Hospital Presumptive Eligibility Sites are hospitals that have voluntarily elected to serve as Presumptive Eligibility sites. Qualified Hospital Presumptive Eligibility Sites agree to make determinations in accordance with State policies and assist individuals with completing Medical Assistance applications and understanding documentation requirements.

Questionable is defined as inconsistent or contradictory tangible information, statements, documents, or file records.

Reasonable Compatibility refers to an allowable difference or discrepancy between the income an applicant self attests and the amount of income reported by an electronic data source. For a more complete description of how reasonable compatibility is used to determine an applicant's financial eligibility for Medical Assistance, please refer to the MAGI Income section at 8.100.4.C

Reasonable Explanation refers to the opportunity afforded an applicant to explain a discrepancy between self-attested income and income as reported by an electronic data source, when the difference is above the threshold percentage for reasonable compatibility.

Recipient is any person who has been determined eligible to receive benefits.

Resident is any individual who is living within the state and considers the state as their place of residence. Residents include any unemancipated child whose parent or other person exercising custody lives within the state.

RRB - Railroad Retirement Benefits is a benefit program under Federal law 45 U.S.C. § 231 et seq that became effective in 1935. It provides retirement benefits to retired railroad workers and families from a special fund, which is separate from the Social Security fund.

Secondary School is a school or educational program that provides instruction or training towards a high school diploma or an equivalent degree such as a High School Equivalency Diploma (HSED).

SGA – Substantial Gainful Activity is defined by the Social Security Administration. SGA is the term used to describe a level of work activity and earnings. Work is "substantial" if it involves performance of significant physical or mental activities or a combination of both, which are productive in nature. For work activity to be substantial, it does not need to be performed on a full-time basis. Work activity performed on a part-time basis may also be substantial gainful activity. "Gainful" work activity is work performed for pay or profit; or work of a nature generally performed for pay or profit; or work intended for profit, whether or not a profit is realized.

Single Entry Point Agency means the organization selected to provide case management functions for persons in need of Long-Term Care services within a Single Entry Point District.

Single Streamlined Application or "SSAp" is the general application for health assistance benefits through which applicants will be screened for Medical Assistance programs including Medicaid, CHP+, or premium and cost-sharing assistance for purchasing private health insurance through a state insurance marketplace.

DRAFT

SISC- Supplemental Income Status Codes are system codes used to distinguish the different types of state supplementary benefits (such as OAP) a recipient may receive. Supplemental Income Status Codes determine the FFP for benefits paid on behalf of groups covered under the Medical Assistance program.

SSA - Social Security Administration is an agency of the United States federal government that administers Social Security, a social insurance program consisting of retirement, disability, and survivors' benefits.

SSI - Supplemental Security Income is a Federal income supplement program funded by general tax revenues (not Social Security taxes) that provides income to aged, blind or disabled individuals with little or no income and resources.

SSI Eligible means an individual who is eligible to receive Supplemental Security Income under Title XVI of the Social Security Act, and may or may not be receiving the monetary payment.

TANF - Temporary Assistance to Needy Families is the Federal assistance program which provides supportive services and federal benefits to families with little or no income or resources. It is the Block Grant that was established under the Personal Responsibility and Work Opportunity Reconciliation Act in Title IV of the Social Security Act.

Tax Dependent is anyone expected to be claimed as a dependent by a Tax-Filer.

Tax-Filer is an individual, head of household or married couple who is required to and who files a personal income tax return.

Third Party is an individual, institution, corporation, or public or private agency which is or may be liable to pay all or any part of the medical cost of an injury, a disease, or the disability of an applicant for or recipient of Medical Assistance.

Title XIX is the portion of the federal Social Security Act which authorizes a joint federal/state Medicaid program. Title XIX contains federal regulations governing the Medicaid program.

TMA - Transitional Medical Assistance is a Medical Assistance category for families that lost Medical Assistance coverage due to increased earned income or loss of earned income disregards.

Unearned Income is the gross amount received in cash or kind that is not earned from employment or self-employment.

VA - Veterans Affairs is The Department of Veterans Affairs which provides patient care and Federal benefits to veterans and their dependents.

8.100.3. Medical Assistance General Eligibility Requirements

8.100.3.N. Confidentiality

1. All information obtained by the eligibility site concerning an applicant for or a recipient of Medical Assistance is confidential information.

2. A signature on the Single Streamlined Application and the Application for Public Assistance allows an eligibility site worker to consult banks, employers, or any other agency or person to

obtain information or verification to determine eligibility. The identification of the worker as an eligibility site employee will, in itself, disclose that an application for the Medical Assistance Program has been made by an individual. In this type of contact, as well as other community contacts, the eligibility site should strive to maintain confidentiality. The signature on the Single Streamlined Application and the Application for Public Assistance also provides permission for the release of the client's medical information to be provided by health care providers to the State and its agents for purpose of administration of the Medical Assistance Program.

3. Eligibility site staff may release a client's Medical Assistance state identification number and approval eligibility spans to a Medical Assistance provider for billing purposes.

Eligibility site staff may inform a Medical Assistance provider that an application has been denied but may not inform them of the reason why.

4. Access to information concerning applicants or recipients must be restricted to persons or agency representatives who are subject to standards of confidentiality that are comparable to those of the State and the eligibility site.

5. The eligibility site must obtain permission from a family, individual, or authorized representative, whenever possible, before responding to a request for information from an outside source, unless the information is to be used to verify income, eligibility and the amount of Medical Assistance payment. This permission must be obtained unless the request is from State authorities, federal authorities, or State contractors acting within the scope of their contract. If, because of an emergency situation, time does not permit obtaining consent before release, the eligibility site must notify the family or individual immediately after supplying the information.

6. The eligibility site policies must apply to all requests for information from outside sources, including government bodies, the courts, or law enforcement officials. If a court issues a subpoena for a case record or for any eligibility site representative to testify concerning an applicant or recipient, the eligibility site must inform the court of the applicable statutory provisions, policies, and regulations restricting disclosure of information.

7. The following types of information are confidential and shall be safeguarded:

a. Names and addresses of applicants for and recipients of the Medical Assistance Program;

b. Medical services provided;

c. Social and economic conditions or circumstances;

d. Agency evaluation of personal information;

e. Medical data, including diagnosis and past history of disease or disability;

f. All information obtained through the Income and Eligibility Verification System (IEVS), the Federal Data Services Hub (FDSH), Equifax The Work Number (TWN), Colorado Department of Labor and Employment, SSA or Internal Revenue Service, or National Student Clearinghouse (NSC);

g. Any information received in connection with identification of legally liable third party resources;

DRAFT

h. Any information received for verifying income and resources if applicable, or other eligibility and the amount of Medical Assistance payments;

i. Social Security Numbers.

8. The confidential information listed above may be released to persons outside the eligibility site only as follows:

a. In response to a valid subpoena or court order;

b. To State or Federal auditors, investigators or others designated by the Federal or State departments on a need-to-know basis;

c. To individuals executing Income and Eligibility Verification System;

d. Child Support enforcement officials;

e. To a recipient or applicant themselves or their designated representative.

f. To a Long Term Care institution on the AP-5615 form.

9. The applicant/recipient may give a formal written release for disclosure of information to other agencies, such as hospitals, or the permission may be implied by the action of the other agency in rendering service to the client. Before information is released, the eligibility site should be reasonably certain the confidential nature of information will be preserved, the information will be used only for purposes related to the function of the inquiring agency, and the standards of protection established by the inquiring agency are equal to those established by the State Department. If the standards for protection of information are unknown, a written consent from the recipient shall be obtained.

8.100.3.R. Presumptive Eligibility by Qualified Hospitals

1. Hospital Presumptive Eligibility is for inpatient and/or outpatient services through a qualified hospital presumptive eligibility site that assists individuals in completing a medical assistance application. These presumptive eligibility services are for ambulatory services, state plan approved medical services, or limited family planning.

a. A pregnant woman may apply for presumptive eligibility for ambulatory services through a qualified hospital presumptive eligibility site.

b. A child or youth under the age of 19 may apply for themself or have an adult apply on their behalf for presumptive eligibility for state plan approved medical services through a qualified hospital presumptive eligibility site.

c. An applicant aged 19-65, an applicant who is a parent or caretaker relative of dependent children, or an applicant age 16 or older who is currently employed and meet the Social Security Administration’s definition of disability or have a limited disability as determined

DRAFT

by a state contractor may apply for presumptive eligibility for state plan approved medical services through a qualified hospital presumptive eligibility site.

d. Presumptive eligibility is also available to applicants for limited family planning who are not pregnant. There are no age or gender restrictions under the limited family planning presumptive eligibility category.

2. To be eligible for presumptive eligibility:

a. A pregnant woman must have an attested pregnancy, declare that her household's income shall not exceed 195% of the federal poverty level and declare that she is a United States citizen or a lawfully residing immigrant unless they meet the exceptions outlined under 8.100.3.G. 1.g. viii.

b. A child or youth under the age of 19 must have a declared household income that does not exceed 142% of federal poverty level and declare that the child or youth is a United States citizen or a documented immigrant unless they meet the exceptions outlined under 8.100.3.G. 1.g.viii.

c. To qualify for limited family planning presumptive eligibility, an applicant must have declared household income greater than 133% but not exceeding 260% of the federal poverty level. The applicant cannot be eligible for a Medicaid eligibility category that provides full coverage. The applicant must declare they are a United States citizen or a lawfully residing immigrant. An applicant applying for limited family planning presumptive eligibility will be counted individually as a household member of two.

d. An applicant age 19 to 6~~45~~, who is eligible under the MAGI Expansion Group as defined in section 8.100.4.G.4. must have a declared household income that does not exceed 133% of the federal poverty level and declare themself as a United States citizen or a documented immigrant. This category includes adults who are parents or caretaker relatives of dependent children whose income exceeds the income threshold to qualify for the Parents and Caretaker Relatives MAGI category and who meet all other eligibility criteria.

i) Adults eligible under the MAGI Expansion Group must also meet the Community Engagement requirements outlined at section 8.100.4.G.4.c. Compliance for Community Engagement requirements includes the evaluation of eligibility for a Specified Excluded Individual status, or if the individual is an Applicable Individual who qualifies for a Mandatory Exception. If the individual does not meet an exclusion or exception, they must complete at least 80 hours of approved Community Engagement Qualifying Activities. Eligibility will be determined based on the individual's self-attestation at the time of the presumptive eligibility determination. Community Engagement requirements shall be fully evaluated as part of the Medical Assistance application process.

e. An applicant who is a parent or caretaker relative or legally appointed guardian or conservator of dependent children, must have a declared household income that does not exceed 68% of the federal poverty level and declare themself as a United States citizen or a documented immigrant.

f. An applicant age 16 or older who has declared they are currently employed with income less than or equal to 450% of FPL and declare they are a United States citizen or a documented immigrant unless they meet the exceptions outlined under 8.100.3.G. 1.g. viii. Only the applicant's income will be considered. Resources are not counted in

DRAFT

determining eligibility. Applicants must also declare they have a disability as defined as Social Security Administration medical listing or a limited disability as determined by a state contractor.

3. Qualified hospital presumptive eligibility sites must be certified by the Department to make presumptive eligibility determinations. Sites shall be re-certified by the Department every year to remain approved as a qualified hospital presumptive eligibility site.

4. The qualified hospital presumptive eligibility site must forward the medical assistance application to the County Department of Human Services within five business days.

5. The presumptive eligibility period begins on the date the applicant(s) is determined eligible and ends with the day an eligibility determination for Medical Assistance is made for the applicant(s).

6. A presumptively eligible member may not appeal the end of a presumptive eligibility period.

7. Medical Assistance applicants may appeal if a County Department of Human Services is unable to act within 45 days or 90 days (if a disability determination is required) of the medical assistance application date or the denial of a medical assistance application. Appeal procedures are outlined in the State Hearings section of this volume.

8. Applicants cannot receive presumptive eligibility if they already are in receipt of another medical assistance program.

9. An applicant may only receive presumptive eligibility once every 12 months with the exception of pregnant women who may receive presumptive eligibility once every pregnancy.

8.100.4 MAGI Medical Assistance Eligibility [Eff. 01/01/2014]

8.100.4.G. MAGI Covered Groups

1. For MAGI Medical Assistance, any person who is determined to be eligible for Medical Assistance based on MAGI at any time during a calendar month shall be eligible for benefits during the entire month.

2. Children applying for Medical Assistance whose total household income does not exceed 142% of the federal poverty level shall be determined financially eligible for Medical Assistance. Refer to the MAGI-Medicaid income guidelines chart available on the Department's website.

    a. Children are eligible for Children's MAGI Medical Assistance through the end of the month in which they turn 19 years old. After turning 19, the individual may be eligible for a different Medical Assistance category.

3. Parents and Caretaker Relatives applying for Medical Assistance whose total household income does not exceed 68% of the federal poverty level (MAGI-equivalent) shall be determined financially eligible for Medical Assistance. Parents or Caretaker Relatives eligible for this category shall have a dependent child in the household.

    a. A dependent child is considered to be living in the home of the parent or caretaker relative as long as the parent or specified relative exercises responsibility for the care and control of the child even if:

DRAFT

i) The child is under the jurisdiction of the court (for example, receiving probation services);

ii) Legal custody is held by an agency that does not have physical possession of the child;

iii) The child is in regular attendance at a school away from home;

iv) Either the child or the relative is away from the home to receive medical treatment;

v) Either the child or the relative is temporarily absent from the home;

vi) The child is in voluntary foster care placement for a period not expected to exceed three months. Should the foster care plan change within the three months and the placement become court ordered, the child is no longer considered to be living in the home as of the time the foster care plan is changed.

4. Adults ages 19-64 who are applying for or enrolled in Medical Assistance under the MAGI Expansion Group and ~~-~~whose total household income does not exceed 133% of the federal poverty level shall be determined financially eligible for Medical Assistance. This category includes adults who are parents or caretaker relatives of dependent children whose income exceeds the income threshold of 68% of the federal poverty level to qualify for the Parents and Caretaker Relatives MAGI category and who meet all other eligibility criteria.

Effective January 1, 2027, adults applying for or enrolled in Medical Assistance under the MAGI Expansion Group, and whose household income does not exceed 133 % of the federal poverty level must meet the Community Engagement requirements, unless the individual is a Specified Excluded Individual or meets a Mandatory Exception described under this section.

a. D~~d~~ependent child living in the household of a parent or caretaker relative shall ave minimum essential coverage, in order for the parent or caretaker relative to be eligible for Medical Assistance under this category. Refer to section 8.100.4.G.3.a on who is considered a dependent child.

~~b. Due to the COVID-19 Public Health Emergency an applicant who is not eligible for Medical Assistance but has been impacted through exposure to or potential infection with COVID-19 may be eligible to receive services for COVID-19 testing only. To qualify for this limited benefit, the applicant must satisfy residency and immigration or citizenship status and not be enrolled in other health insurance.~~

b. For the purpose of the Community Engagement rules the following definitions apply:

i) Applicable Individuals are individuals who are generally eligible or enrolled under the state plan in the MAGI Expansion Group described in §1902(a)(10)(A)(i)(VIII) of the Act and do not meet the criteria for a Specified Excluded Individual, refer to Section 8.100.4.G.4.e for the covered group. For Applicable Individuals it will be determined if the individual demonstrates compliance with Community Engagement requirements as a condition of Medical Assistance eligibility.

ii) Community Engagement (known as Medicaid Work Requirements) is the participation of an Applicable Individual in one or more Qualifying Activities at least eighty (80) hours per calendar month or receiving $580 in countable earned

DRAFT

and/ or unearned gross income for the MAGI household, as further described in Section 8.100.4.G.4.c.

iii) Family Caregiver means a parent, guardian, caretaker or relative, an adult family member, or another individual who has a significant relationship with and provides a broad range of care and assistance (RAISE Family Caregivers Act) to a "care recipient." (as defined in the Americans with Disabilities Act (ADA) and/or by Section 1614 of the Social Security Act (42 U.S.C 1382c). A care recipient is either:

1) Is a dependent child 13 years of age or younger, or

2) A person of any age who has a disability or a serious complex medical condition that is life-threatening or makes performing daily activities difficult.

iv) Lookback Review Period means the period preceding an eligibility determination during which it is determined whether an individual is a Specified Excluded Individual or an Applicable Individual and, if applicable, whether the individual qualifies for a Mandatory Exception or meets, or is deemed to meet, Community Engagement requirements through a Qualifying Activity.

v) Mandatory Exception are specific reasons that individuals are excluded from the definition of an "Applicable Individual" or are not subject to the Community Engagement requirements. These reasons are further described in section 8.100.4.G.4.f.

vi) Medically Frail, in the context of the H.R.1 Community Engagement requirement exclusion, includes individuals who have one or more of the following conditions:

1) Individuals who are blind or disabled; or

2) Have a substance use disorder and are in early (immediate to 1 year recovery stage) or sustained (1 to 5 years) recovery stage; or

3) Have a disabling mental disorder; or

4) Have a physical, intellectual or developmental disability that significantly impairs their ability to perform 1 or more activities of daily living; or

5) Have a serious or complex medical condition; and

6) Have special medical needs that cause significant impairment to work, volunteer, or attend school.

vii) Qualifying Activity is any activity that satisfies the Community Engagement requirements, including employment, self-employment, participation in a work program, enrolled in education program, including higher education or a technical school, community service, or volunteer service.

viii) Specified Excluded Individuals are specific reasons that are excluded from the definition of an "Applicable Individual" or are not subject to demonstrating the Community Engagement requirements. These reasons are further described in section 8.100.4.G.4.e.

DRAFT

c. Eligibility Criteria for Community Engagement Compliance.

Compliance for Community Engagement requirements includes the evaluation of eligibility for a Specified Excluded Individual status, or if the individual is an Applicable Individual who qualifies for a Mandatory Exception. If the individual does not meet a Mandatory Exception, they must meet the Community Engagement requirements.

i) The individual must meet one of the following requirements for each calendar month during the lookback review period, to meet the Community Engagement requirements:

1) Receive at least $580 in countable earned or unearned gross income for their MAGI household; or

2) Complete at least 80 hours of approved Community Engagement Qualifying Activities.

d. Community Engagement Compliance for Applications, Reported Changes, and Renewals.

This section describes the requirements for an individual to demonstrate compliance with Community Engagement when applying for, reporting changes to, or renewing Medical Assistance under the MAGI Expansion Group. It covers the criteria at each stage for new applications, changes, redeterminations, and retroactive coverage requests to maintain or receive coverage.

i) New Applications

Applicants eligible for Medical Assistance under the MAGI Expansion Group the Department will determine if the applicant is a Specified Excluded Individuals in the month of application or qualify for a Mandatory Exception in the month before the application or demonstrate compliance with the Community Engagement requirements in the month before the application month. Applicable Individuals who do not demonstrate compliance with Community Engagement requirements may be ineligible for Medical Assistance.

ii) Changes in Circumstances

When a change in circumstances is reported for a member enrolled in Medical Assistance under the MAGI Expansion Group, the Department shall determine whether the change affects the member's status as a Specified Excluded Individual, Mandatory Exception, or compliance with the Community Engagement Qualifying Activities. The review will be conducted during the lookback review period, which starts with the month the change in circumstance was reported and ends with the most recent eligibility determination.

1) Member Becomes a Specified Excluded Individual

If information received as a change in circumstances establishes that the member meets the criteria for a Specified Exclusion, the member is no longer an Applicable Individual and is not subject to the Community Engagement requirement. The Department shall not require the member to demonstrate Community Engagement while the member meets the criteria for a Specified Exclusion.

DRAFT

2) Member Loses a Specified Exclusion and Becomes an Applicable Individual

If a member enrolled in the MAGI Expansion Group no longer meets the criteria for a Specified Exclusion or Mandatory Exception and does not meet another Specified Exclusion or Mandatory Exception, the member becomes an Applicable Individual.

3) The Department shall determine whether the member demonstrated, or is deemed to have demonstrated, Community Engagement during the lookback review period which begins with the effective date of the member's most recent determination or redetermination at renewal and ends on the last day of the month before the month in which the member becomes an Applicable Individual.

A member who met the criteria for a Specified Exclusion for part or all of a month during the lookback review period is deemed to have demonstrated compliance with Community Engagement for that month under a Mandatory Exception.

4) Member Transitions from Another Medical Assistance Eligibility Group into the MAGI Expansion Group

When a change in circumstances causes a member enrolled in another Medical Assistance eligibility group to be determined eligible for the MAGI Expansion Group, the Department shall determine if the member qualifies for Specified Excluded Individual status or qualifies for a Mandatory Exception or whether the member demonstrated or is deemed to have demonstrated compliance during the lookback review period before enrolling the member in the MAGI Expansion Group.

The lookback review period begins with the effective date of the member's most recent determination or redetermination at renewal and ends on the last day of the month before the month in which the member enrolls in the MAGI Expansion Group.

A member who was enrolled in an eligibility group that qualifies for a Mandatory Exception for part or all of a month during the lookback review period is deemed to have demonstrated Community Engagement for that month.

5) Member Remains an Applicable Individual

When a member enrolled in the MAGI Expansion Group remains an Applicable Individual and reports a change to a Qualifying Activity, including the end or reduction of work or another Qualifying Activity, the reported change does not by itself establish a new Community Engagement review period.

Community Engagement compliance shall be evaluated at the member's next scheduled renewal using the lookback review period, unless another change affects the member's eligibility or establishes that the member is a Specified Excluded Individual.

DRAFT

iii) Redetermination of Eligibility

Members eligible for Medical Assistance under the MAGI Expansion Group will go through the redetermination process to be determined if they meet an exclusion, exception or demonstrate compliance with the Community Engagement requirements in Section 8.100.4.G.4.c during the applicable lookback review period. The lookback review period begins with the month of the member's most recent eligibility determination and continues through the month in which the Ex Parte process begins.

e. Eligibility Criteria for Specified Excluded Individuals

i) An individual is excluded from the Community Engagement requirements if they meet one of the following Specified Exclusions:

1) Family caregivers who are a parent, guardians, caretaker relatives caring for a care recipient. Family caregiving must occur on a regular basis and not as occasional assistance. Caregivers qualify when care recipients are:

a) A child age 13 or younger and the caregiver either:

b) Resides with the care recipient regardless of the relationship; or

c) Related by blood or marriage and does not reside with the care recipient; or

d) Does not reside with and is not a relative of the care recipient and provides at least 80 hours of caregiving per month. Caregiving hours of less than 80 hours per month may be counted toward Community Engagement activities for Applicable Individuals as described in section 8.100.4.G.4.c.

2) An individual of any age with a disability or serious complex medical condition that is life threatening or makes performing daily activities difficult and the caregivers either:

a) Reside with the care recipient regardless of the relationship; or

b) Related by blood or marriage and do not reside with the care recipient; or

c) Does not reside with and is not a relative of the care recipient and provides at least 80 hours of caregiving per month. Caregiving hours of less than 80 hours per month may be counted toward Community Engagement activities for Applicable Individuals as described in section 8.100.4.G.4.c.

3) Former Foster Care Youth described in section 1902(a)(10)(A)(i)(IX) of the Act.

4) American Indians and Alaska Natives.

DRAFT

5) Veterans with a service-connected disability that meets either of the following criteria:

a) Have a 100% disability rating from the U.S. Department of Veterans Affairs (VA), whether temporary or permanent; or

b) Have been granted Total Disability based on Individual Unemployability (TDIU), even if combined disability rating is below 100%.

6) Individuals who are Medically Frail (defined in section 8.100.4.G.4.b.vi).

7) Individuals in a household receiving Supplemental Nutrition Assistance Program (SNAP) and who are not exempt from SNAP work requirements.

8) Individuals compliant with Colorado's Temporary Assistance for Needy Families (TANF) work requirements.

9) Individuals who are currently participating in a treatment or rehabilitation program for substance use disorder.

10) Individuals who are currently inmates of a public institution.

11) Pregnant individuals and individuals eligible for postpartum Medical Assistance.

f. Eligibility Criteria for Mandatory Exceptions

If an Applicable Individual meets a Mandatory Exception for any part of a month during the lookback review period, the individual is considered to have met Community Engagement requirements. The following individuals meet Mandatory Exceptions for the Community Engagement requirements:

i) Individuals under age 19.

ii) Mandatory categorically needy eligibility groups.

iii) Individuals entitled to or enrolled in benefits under Medicare Part A.

iv) Individuals enrolled in benefits under Medicare Part B.

v) Individuals who were inmates of a public institution at any point during the three-month period prior to their application or during the renewal in their lookback review period.

vi) Specified Excluded Individuals (if relevant during the lookback review period).

g. Types of Community Engagement Qualifying Activities

i) An individual may satisfy the Community Engagement requirements by having countable household income of at least $580 or more through the following types of work:

DRAFT

1) Employment at a paid job, either part-time or full-time, or being self-employed.

a) Seasonal workers can meet the average monthly 80-hour requirement or the average monthly income that equals at least $580 in countable gross earned income. For seasonal workers with different incomes, the average monthly hours over the course of 12 months will be looked at.

2) Countable unearned income, in-kind income and all types of unearned income listed in section 8.100.3.K.11.

ii) If an individual's countable income is below the threshold of $580, they may satisfy the Community Engagement requirements by completing at least 80 hours of qualifying activities in a calendar month. The individual may combine different types of activities to reach the 80-hour total. The following activities qualify for Community Engagement:

1) Income that is less than $580 from work listed above may be converted to hours by using the current federal minimum wage in accordance with 435.552(e).
2) Unpaid work which provides hours that result from a service that can benefit a private entity or an individual including internships, trial-period work, and caregiving hours that were less than 80 hours in a given month

iii) Enrollment in an approved educational or vocational program for at least half time. An individual enrolled at least half-time is not required to demonstrate 80 hours of educational activity or combine educational hours with another Community Engagement activity for that month. Qualifying programs include:

1) Institutions of Higher Education: Enrollment in a professional degree institution, college, university, community college, or junior college.

a) The Agency must obtain electronic or written consent from the eligible student before requesting data from the National Student Clearinghouse (NSC) to verify student enrollment data.

2) Career or Technical Education: Enrollment in a vocational school, trade school, or technical training school.

3) High School or GED: Enrollment or participation in secondary education, Adult Basic Education classes or other equivalent educational services.

iv) Enrollment in an approved educational or vocational program for less than half time. An individual who is enrolled in an educational program less than half-time does not meet the Community Engagement requirement based on enrollment status alone. The individual's educational program hours must be calculated in accordance with 42 CFR § 435.552(d) and may be combined with other qualifying Community Engagement activities to meet the 80-hour monthly requirement Qualifying programs include:

1) Institutions of Higher Education: Enrollment in a professional degree institution, college, university, community college, or junior colleges.

DRAFT

a) The Agency must obtain electronic or written consent from the eligible student before requesting data from the National Student Clearinghouse (NSC) to verify student enrollment data.

2) Career or Technical Education: Enrollment in a vocational school, trade school, or technical training school.

3) Calculation of less than half time educational hours based on whether the educational program uses a credit hour system:

a) Educational programs that use credit hours: The Department shall calculate monthly educational program hours by multiplying the number of credit hours by 3, then by 4.33 (Credit Hours × 3 × 4.33 = Monthly Educational Program Hours). The Department shall round the resulting monthly hours up to the nearest whole hour.

b) Educational programs that do not use credit hours: The Department shall count the actual hours of attendance or participation in required educational activities, including instruction, hands-on training, laboratory work, clinical activities, or other required program activities.

v) Community service or volunteering includes the following activities, which are performed without pay:

1) Volunteering at Nonprofits (not serving a partisan purpose): Providing volunteer services to recognized charities, food pantries, shelters, religious institutions, or hospitals.

2) Public Service: Provide services to local government, schools, or public parks.

vii) Work programs that help individuals prepare for work by providing job training or work experience. These programs must be operated or pre- approved by federal or state government. Types of work programs include:

1) Snap Em SNAP Employment and Training: Participation in Employment First or another qualifying SNAP employment and Training program that provides employment, training, job search, and other approved workforce activities.

2) WIOA (Workforce Innovation and Opportunity Act programs): These programs provide limited support for short-term training that leads directly to jobs in demand in the local area. Training options include classroom sessions, on-the-job training, internships, and apprenticeships.

3) Trade Adjustment Assistance: These programs help workers who have lost their jobs due to foreign trade.

4) State Workfare or Training Programs: Any other structured job-readiness, job search (max of 39 monthly hours), or workforce preparation program run or recognized by the state.

DRAFT

5) Veteran readiness and employment programs operated and monitored by the Department of Labor (DOL) or the Department of Veterans Affairs (VA).

h. Compliance Reporting and Verification

i) Community Engagement requirements shall be evaluated using the following verification hierarchy:

1) Determine whether the individual is a Specified Excluded Individual.

2) If the individual is not a Specified Excluded Individual, determine whether the individual meets a Mandatory Exception.

3) If the individual is not a Specified Excluded Individual and does not meet a Mandatory Exception, determine whether the individual has demonstrated a Qualifying Activity sufficient to satisfy the Community Engagement requirements.

4) For all determinations under this section, available and reliable electronic data sources and information already available shall be used before requesting information from the individual.

5) Once a Specified Exclusion, Mandatory Exception, or Qualifying Activity is verified through available and reliable information, no further verification is required for that application determination period.

6) Self-attestation shall be accepted when:

a) Available and reliable information is not available; or

b) Verification cannot reasonably be obtained through electronic data sources; or

c) No documentation requirement is specifically required under federal or state law

7) Self-Attestation exception for Veterans with Service-Connected Disabilities

a) Self-attestation shall not be accepted to verify the Specified Exclusion for a Veteran with a service-connected disability.

b) Verification must be provided through

i. A Veterans Administration benefits letter; or

ii. A Veterans Administration disability determination; or

iii. Federal data sources available to the Department; or

iv. Other documentation approved by the Department demonstrating a service connected disability.

DRAFT

8) Self-attestation may be supplemented by written, verbal, or electronic statements submitted by the individual.

When unable to determine through available and reliable information that an individual meets the Community Engagement requirement or that the requirement does not apply, a Work Requirements Form (Notice of Noncompliance) shall be issued. The form shall provide the individual an opportunity to report information demonstrating compliance or that the Community Engagement requirement does not apply.

ii) Verification at Application

1) At application, available and reliable data sources shall first be used to determine whether the applicant:

a) Is a Specified Excluded Individual; or

b) Meets a Mandatory Exception; or

c) Has met a Qualifying Activity during the state-established Community Engagement lookback review period.

2) If compliance, a Mandatory Exception, or a Specified Exclusion cannot be verified through available and reliable data sources, additional information shall be requested from the applicant

3) The applicant shall have the standard Medical Assistance application verification period established in rule and federal eligibility regulations (42 CFR 435.557) to provide requested information.

4) A Work Requirements Self-Reporting Form (Notice of Noncompliance) shall be issued when available and reliable information is insufficient to verify that the applicant:

a) Meets a Qualifying Activity; or

b) Qualifies for a Specified Exclusion or Mandatory Exception.

5) The Notice of Noncompliance shall:

a. Explain the Community Engagement requirements; and

b) Explain how the applicant may demonstrate compliance; and

c) Explain how the applicant may demonstrate that the requirement does not apply; and

d) Provide the applicant 30- calendar days from receipt of the notice to make an effort to provide sufficient information. The notice shall be considered received 5 -days after the date on the notice, unless the applicant demonstrates that the notice was not received within the 5-day period.

6) If the applicant does not provide sufficient information within the 30-calendar-day period, eligibility may be denied only after:

DRAFT

iii Verification of Redetermination

1) At redetermination, an Ex Parte review shall be conducted using all available and reliable information to determine whether the individual:

a) A Specified Excluded Individual; or

b) Meets a Mandatory Exception; or

c) Has demonstrated a Qualifying Activity during the applicable compliance review period.

2) If available and reliable information is insufficient to establish a Specified Exclusion, Mandatory Exception, or compliance through a Qualifying Activity, a Work Requirements Self-Reporting Form and any required verification requests shall be provided with the redetermination form. The individual shall be provided at least 30 calendar days to provide information establishing that

a) Community Engagement requirements have been met; or

b) The requirement does not apply.

3) The due date for the Work Requirement Self-Reporting Form will align with the redetermination due date. Medical assistance will continue during the 30-calendar-day period consistent with federal requirements.

4) If the individual returns the redetermination form but the information is incomplete, inconsistent, or raises additional questions, the eligibility site worker will make reasonable efforts to obtain clarification, including written, telephonic, or electronic, where available.

5) The individual will be provided at least 10 business days to submit additional requested verification

6) If sufficient information is not provided during the 30-calendar day period, eligibility may be terminated only after:

a) Determining whether the individual qualifies under another Medical Assistance program; and

b) Providing adequate notice; and

c) Providing fair hearing rights.

5. Pregnant Women whose household income does not exceed 195% of the federal poverty level (MAGI-equivalent) are eligible for the Pregnant Women MAGI Medical Assistance program. Medical Assistance shall be provided to a pregnant woman for a period beginning with the date of application for Medical Assistance through the last day of the 12th month following the date the pregnancy ends. Once eligibility has been approved, Medical

DRAFT

Assistance coverage will be provided regardless of changes in the woman's financial circumstances once the income verification requirements are met.

a. A pregnant women’s eligibility period will end effective the earliest possible month, if the following occurs:

DRAFT

i) Fails to provide a reasonable explanation or paper documentation when self-attested income is not reasonably compatible with income information from an electronic data source, by the end of the 30day reasonable opportunity period. This exception only applies the first-time income is verified following an initial eligibility determination or an annual redetermination.

6. A lawfully admitted non-citizen who is pregnant and who has been in the United States for less than five years is eligible for Medical Assistance if she meets all of the other eligibility requirements specified at 8.100.4.G.5 and fits into one of the immigration categories listed in 8.100.3.G.1.g.iii.1-5 and 8.100.3.G.1.g.vi.1-15. This population is referenced as Legal Immigrant Prenatal.

7. A child whose mother is receiving Medical Assistance at the time of the child's birth is continuously eligible for one year. This population is referred to as “Eligible Needy Newborn”. This coverage also applies in instances where the mother received Medical Assistance to cover the child’s birth through retroactive Medical Assistance. The child is not required to live with the mother receiving Medical Assistance to qualify as an Eligible Needy Newborn.

a. To receive Medical Assistance under this category, the birth must be reported verbally or in writing to the County Department of Human Services or eligibility site. Information provided shall include the baby’s name, date of birth, and mother’s name or Medical Assistance number. A newborn can be reported at any time by any person. Once reported, a newborn meeting the above criteria shall be added to the mother’s Medical Assistance case, or his or her own case if the newborn does not reside with the mother, according to timelines defined by the Department. If adopted, the newborn’s agent does not need to file an application or provide a Social Security Number or proof of application for a Social Security Number for the newborn

8. Applicants applying for Medical Assistance whose total household income is greater than 133% but does not exceed 260% of the federal poverty level shall be determined financially eligible for limited Family Planning Medical Assistance services. The applicant must satisfy residency and immigration or citizenship status to qualify for this limited benefit. The limited family planning services eligibility category has no age or gender restriction and is available for those not eligible for a Medicaid eligibility category that provides full coverage.

DRAFT